

Mrs. Beejal Siddharth Ruparel vs Mr. Siddharth Harshad Ruparel on 27 June, 2019

Author: K.K.Tated

Bench: K.K.Tated

(519)mcast-17387-19.doc

IN THE HIGH COURT OF JUDICATURE AT BOMBAY CIVIL APPELLATE JURISDICTION

MISC.CIVIL APPLICATION (STAMP) NO.17387/2019

Beejel S. Ruparel	...	Applicant.
	Vs.	
Siddharth H. Ruparel	...	Respondent.
Mr.A.I. Nizami I/b Mohd. Umar Kazi, advocate for applicant.		

CORAM : K.K.TATED, J.

DATED : JUNE 27, 2019.

P.C. Not on board. Pursuant to the preceipe filed by learned advocate for applicant, the matter is shown on board for urgent orders.

2. Learned counsel for applicant submits that, by this application u/s 24 of CPC, the applicant/wife is seeking transfer of Marriage Petition no.454/2019 filed by respondent no.1, u/s 13(1) (ia)(ib) of the Hindu Marriage Act, for divorce before Civil Judge, Senior Division, Pune to learned Civil Judge, Senior Division, Kalyan . He submits that the applicant has minor child, therefore, it is difficult for her to travel from Kalyan to Pune on each and every date. Therefore, he filed present application.

3. Considering the submissions made by the learned (519)mcast-17387-19.doc counsel for applicant and the averments made in application, I am satisfied that applicant has made out a case for following order.

- a) Registry is directed to issue notice for final disposal to the respondent returnable on 26.7.2019.
- b) In addition to usual mode of service, the appellant is permitted to serve the respondents by private notice alongwith entire proceeding either by RPAD and/or hand delivery and file affidavit of service to that effect, on or before 19.07.2019.
- c)Applicant to remove all office objections on or before 17.7.2019 failing which Misc. Civil

Application shall stand dismissed without referring back to the court.

4. Stand over to 26.7.2019.

(K.K.TATED, J.) (519)mcast-17387-19.doc